

		merely the escrow company and parent company of the title insurer, respectively. Movants contend that a title insurer does not owe a duty to support the negligence claim alleged in the Cross-Complaint as a matter of law. Movants generally argue the Cross-Complaint fails to explain or distinguish their liability for the causes of action for declaratory relief, breach of contract, breach of the implied covenant of good faith and fair dealing, equitable indemnity, and contribution. Finally, movants contend Cross-Complainant fails to attach the subject title policy or adequately allege its specific terms which have been breached. Cross-Complainant has not filed a timely opposition. Therefore, the demurrer is sustained on the grounds set out in the motion. Cross-Complainant shall file an amended Cross-Complaint within 15 days of service of notice of this order.
5	Morales v. Trinh 2026-01539320 Motion to be Relieved as Counsel CMC	The motion of attorneys Harry Mouradian and Shaun Bauman from Bauman Law APLC to be relieved as counsel of record for plaintiff Amando Peralta Morales is CONTINUED to November 2, 2026, at 1:45 p.m. California Rules of Court, Rule 3.1362, subdivision (d) requires that: "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." Although the declaration in support of the motion states client was served with the moving papers by mail, the proof of service does not show moving papers were served on client. Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file proof of service no later than 5 court days prior to the continued hearing. Moving attorneys to give notice.
6	Guetzkow v. Ford Motor Company 2025-01476742	The motion of attorney Larry Chae from Strategic Legal Practices, APC to be relieved as counsel of record for plaintiff Tyler Guetzkow is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

	Motion to be Relieved as Counsel CMC	Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Clark v. Clark 2025-01502837 Motion to set aside/vacate	Plaintiff Edward L. Clark, Jr.'s Motion to Vacate Order Issued 5/13/2026 is DENIED. Plaintiff moves pursuant to Code of Civil Procedure, section 473, subdivision (b) to set aside the Court's ruling, issued on 5/13/26, denying Plaintiff's Motion to Stay Proceedings in Related Family Law Matter 05D000275 and Order to Show Cause Regarding Preliminary Injunction. (See ROA 132.) As an initial matter, Defendant's defective notice argument lacks merit and the error was harmless. While the notice of motion lists the wrong address for the courthouse, it states the correct department, C15. Defendant's counsel appeared in person in department C15 on 5/13/26, the day before the instant motion was served. No notice was served indicating this case was transferred to a different department. Further, Defendant waived the notice irregularity by substantively opposing the motion. Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) "Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929). Inadvertence is defined as "lack of heedfulness or attentiveness, inattention, fault from negligence." (<i>Baraili v. Barau</i> (1952) 109 Cal.App.2d 917.) Inadvertence constitutes grounds for relief "where the circumstances surrounding the inadvertence justify it and the inadvertence is not wholly inexcusable and does not constitute gross negligence." (<i>Ross v San Diego Pipe</i> (1920) 50 Cal.App. 170.) "Surprise" is some condition or situation in which a party to a cause is unexpectedly placed, to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded